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DEPARTMENT OF THE NAVY
DIRECTOR, STRATEGIC SYSTEMS PROGRAMS
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WASHINGTON NAVY YARD DC 20374-5127

J&A SPJA25-47

Code: SPN204

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. CONTRACTING ACTIVITY. Strategic Systems Programs (SSP)
2. DESCRIPTION OF THE ACTION BEING APPROVED. This Justification and Approval (J&A) authorizes and approves the use of other than full and open competition to award a Cost-plus-fixed-fee (CPFF) contract to Lockheed Martin Space (LMS) for the Trident II (D5LE) Missile and Reentry Subsystems supplies and services.
3. DESCRIPTION OF SUPPLIES/SERVICES. This procurement is a contract modification for new procurement work under Contract N00030-24-C-2017 for services LMS currently performs for the Common Missile Compartment (CMC) support (FY24 CMC contract). The contemplated contract will provide for the procurement of Trident II (D5LE) Missile and Reentry Subsystems supplies and services in support of the construction of the Common Missile Compartment for the Columbia class submarine. LMS will provide the same forms of support to the United Kingdom (UK) and will include:
 - (1) CMC MISSILE SYSTEM INTEGRATION SUPPORT. This effort includes comprehensive technical and program management services in support of the integration of the Trident II (D5LE) Missile System into the CMC. This effort also includes information systems support; missile systems engineering, integration, and test support; reentry project management and systems engineering, integration, and test support; and shipyard installation test program support.
 - (2) SUPPORT EQUIPMENT. This includes the procurement and delivery of Columbia class surface support equipment; development of Installation and Checkout Allowance Document (ICAD) support equipment requirements and provisioning plans; procurement and delivery of ICAD kits; development of Coordinated Shipboard Allowance List (COSAL) support equipment requirements and provisioning plans; and procurement and delivery of COSAL kits.
 - (3) CMC EXPERIMENTAL VEHICLES. This effort includes comprehensive technical and program management in support of CMC Experimental Vehicles. This effort also includes the procurement and delivery of hardware, CMC X-POD Refresh (XPR) kits and spares; development and delivery of test readiness reviews; update of XPR Training Plan and other CMC engineering documentation; and assembly, integration and test, associated with Vibration Test Vehicle components.

Controlled By: Missile Branch (SP27) CUI Category: SP-CONTRACT/SP-PROCURE/SP-PROPIN Distribution/Dissemination Controls: FEDCON POC: [REDACTED]
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The anticipated period of performance for the FY24 CMC contract is from 1 March 2024 through 28 February 2029.

The estimated value of the FY24 CMC contract is approximately \$ [REDACTED]

[REDACTED]

Note: The contract will include a special contract term, which applies only to Level-of-Effort (LOE) line items, intended to provide a vehicle for the Government to acquire additional labor-hours for work within the scope of the contract. This optional term allows an increase not to exceed 30 percent of the total value associated with each LOE contract line item to accommodate for emergent in-scope requirements. This increase of not to exceed 30 percent for LOE line items is not included in the total \$ in the above table.

The J&A estimated value is lower than the net estimated values of funding cited from the aggregate amounts in the applicable Acquisition Plans as a result of the omission of an effort that is outside of the scope of this justification.

4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION. 10 U.S.C. 3204(a)(1). Only one responsible source and no other supplies or services will satisfy agency requirements.

5. RATIONALE JUSTIFYING USE OF CITED AUTHORITY. SSP's requirements for the CMC capabilities are available from only one responsible source. Only LMS has the capabilities, facilities, and expertise required for the CMC effort. The following provides the rationale for awarding a contract to LMS using other than full and open competition, including cost and schedule impacts of contracting with an alternative source.

a. Submarine Platform Integration during construction of COLUMBIA.

(1) LMS is the only responsible source capable of providing submarine platform integration support of the TRIDENT II D5 Missile and Reentry Systems, and TRIDENT II D5 Missile and Reentry support equipment required for the construction of the first COLUMBIA submarine platforms. LMS is the sole contractor to provide and support each generation of US Sea-Launch Ballistic Missile (SLBM) since the inception of the program. The use of LMS is the only means available for meeting the schedule needs of this complex, bilateral development, and procurement effort for the U.S.

(2) As described in further detail below, contracting with LMS is necessary to:

(a) Ensure Strategic Weapon System (SWS) interfaces and technical requirements are maintained in the installation of the CMC during construction of the first COLUMBIA and Dreadnought hulls;

(b) Avoid substantial duplication of costs that are not expected to be recovered through competition; and

(c) Meet CMC component construction dates to support the schedule.

(3) The CMC construction and installation effort entails integration of the submarine platform with the Trident II Missile and Reentry subsystems, and the production of missile support equipment to include missile-servicing equipment and missile test instrumentation equipment. Success will require in-depth knowledge of the Missile and SWS design, integration, training, test, manufacturing, and operational requirements. Only LMS has the design knowledge and capabilities required to fully address the impacts and implications pertaining to changes in the TRIDENT Missile and Reentry subsystems, the missile environment onboard the Submersible, Ballistic, Nuclear (SSBN), operations at the existing facilities, and systems and support equipment, both shipboard and shore-based, including missile test instrumentation. LMS has been the sole contractor that designed, developed, produced, integrated, and supported the TRIDENT II D5 missile and the last five generations of SSBN missile systems. Additionally, LMS was the sole source for Missile expertise during the entire CMC development program. As such, LMS is the only credible and cost effective contractor with the engineering and technical skills and proficiency to be able to successfully perform the tasks required during the scheduled time period of the contract.

(4) LMS owns and operates specialized facilities that are necessary to develop/construct Missile and Reentry subsystem support equipment, to integrate the reentry subsystem into the missile subsystem, and to integrate the missile subsystem into new platforms. LMS is the prime, sole-source contractor for Strategic Weapons Facility operations at Bangor, WA, Kings Bay, GA, and the Eastern Range, where the systems integration tests and the operational assessment will occur. Only LMS, with access to their specialized facilities, can meet the technical requirements of this effort. Duplication of these facilities by another contractor could be accomplished at great expense, and impose unacceptable schedule delays, directly risking completion of the technical requirements of this contract.

(5) LMS has been the sole provider of SSP's Missile and Reentry technical and programmatic support for the CMC program during both the CMC Concept Definition and Design Phases. Beginning in FY 2008, the Navy spent [REDACTED] over 12 years providing Missile and Reentry support to the CMC Concept Definition and Design phases. LMS provided project management, systems integration planning, system test/special vehicles concept definition, flight sciences/ missile system analysis in support of concept designs and trade studies, support equipment concept planning and alternative analysis, field engineering evaluations of design concepts, and liaison with the Ship Design Agent through a CMC New London office on-site representative. During this period, LMS gained substantial CMC expertise, crucial for the next stage of construction, and this expertise is essential in delivering the technical requirements for this procurement. The development of an alternate source with the requisite knowledge of the Missile and Reentry aspects of the CMC Concept Design and Program Plan would require an additional investment of approximately [REDACTED] over the period of two years. This estimate is based on the effort to develop the technical capability to understand the Concept of Operations, the Systems Engineering and Integration core staff, a flight dynamics and analysis capability, and to the personnel needed to support the COLUMBIA build, integration, and test at the shipyard. The technical requirements and the cost and time required to develop a new source

for this effort would result in a delay of at least two years in achieving the Ready for Patrol milestones for COLUMBIA. The cost, schedule delay, and risk associated with obtaining competition through qualification of an alternate source far outweigh any price or quality benefits that could be reasonably anticipated from such a competition. Procurement from LMS is therefore essential to deliver the proposed effort within existing cost, schedule, and technical constraints.

6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS AS PRACTICABLE. SP27 conducted Market Research in accordance with Federal Acquisition Regulation Part 10. Market research techniques included applying personal knowledge in procuring services of this type, contacting knowledgeable individuals in Government and industry regarding market capabilities to meet requirements, reviewing the results of recent market research undertaken to meet similar requirements, and querying the government-wide database of contracts at various Government and commercial websites.

a. SSP Missile Branch (SP27) conducted market research as described below with SSP Reentry Branch (SP28) for the continued effort to support key CMC interface support, development, and coordination between different Navy components (Naval Sea Systems Command OHIO Replacement Program Office PMS 397, General Dynamics Electric Boat, Strategic Systems Programs Chief Engineer) for the next generation strategic systems CMC through construction.

b. Based on this effort, LMS was identified as the only contractor currently capable of meeting the requirements necessary for the performance of this effort. Contract history, past performance, internet searches, and industry information were used to collect information and perform the market survey and internet analysis. SSP technical branch engineers have visited, in person and virtually, prime and subcontractor facilities to better understand work scope and the capabilities of our supply chain. SSP engineers interacted with independent experts in their fields and talked directly with subcontractors on various contracts supporting the SSP mission. Such market research confirmed that it is not practicable, for the reasons discussed above, for any company other than LMS to provide the required supplies and services in the CMC contract.

c. Additionally, SSP posted a Sources Sought Notice on theSAM.gov website on 23 January 2023. SSP received one inquiry of interest from Lockheed Martin Space. SSP also posted a pre-award synopsis onSAM.gov on 13 June 2023.

d. Such market research confirms that it is not practicable, for the reasons discussed above, for any company other than LMS to provide the required supplies and services in the CMC contract.

7. DETERMINATION OF FAIR AND REASONABLE COST. The Contracting Officer has determined that the anticipated cost to the Government of the supplies and services covered by this J&A will be fair and reasonable.

8. ACTIONS TO REMOVE BARRIERS TO FUTURE COMPETITION. For the reasons set forth in Paragraph 5, SSP no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, SSP will assess

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whether competition for future requirements is feasible. Additionally, the prime contractor for this effort will continue to utilize competition and commercial item procurement when possible for component parts.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHINICAL COGNIZANCE (COR):

[REDACTED]

REQUIREMENTS COGNIZANCE:

[REDACTED]

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[REDACTED]

CHIEF OF CONTRACTING OFFICE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

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COMPETITION ADVOCATE APPROVAL

Upon the basis of the above justification, I hereby approve, as the Competition Advocate, Strategic Systems Programs, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

APPROVED:

